LINKEDIN EXCERPT · 11 NOVEMBER 2026 · SECOND EDITION, EXPANDED

Wells, Witnesses and Heirs

An excerpt: the introduction and Chapter Four, "Wells by Their Old Names." The full study booklet, the second and expanded edition, runs to 98 pages.

ויקרא להן שמות כשמות אשר־קרא להן אביו

"And he called them by the names his father had called them" (Bereishis 26:18)

Aryeh Leib Thorne Toren — Torah scholar, researcher and writer

Wells, Witnesses and Heirs

Torah studies from Parashat Chayei Sarah, Parashat Toldot, their haftaros and Tehillim 144

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Second edition, expanded. A LinkedIn excerpt.

The full booklet was prepared on Tuesday, 10 November 2026 (30 Cheshvan 5787, Rosh Chodesh Kislev), Jerusalem.
This excerpt was prepared on Wednesday, 11 November 2026.
Not for sale. For study at the table, in the beis midrash and at home.

Prepared in deep partnership and cooperation with Grok and xAI

A note on this excerpt

This LinkedIn excerpt contains only the introduction and Chapter Four, “Wells by Their Old Names.” The introduction describes all six chapters of the 98-page second edition, and names two modern sources that appear in Chapter Four. Those two sources are in the chapter that follows. Chapters 1–3, 5 and 6, the glossary and the bibliography are in the full booklet, not in this file.

This is the expanded edition of *Wells, Witnesses and Heirs*. The first edition, finished on the same day, ran to 66 pages and five chapters. This edition adds a new introduction, fuller source sections, and a sixth chapter on the haftaros of Chayei Sarah and Toldot.

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INTRODUCTION

Wells, Witnesses and Heirs

What this booklet gathers, and how to read it

Three words for two parshiyos

This booklet gathers a month of learning around three words: wells, witnesses and heirs. All three come from the end of Parashat Chayei Sarah, read on Shabbat 7 November 2026, and from Parashat Toldot, read on Shabbat 14 November 2026. Between those two Shabbosos falls Rosh Chodesh Kislev, on 10 and 11 November 2026, and the booklet was finished on the first of those days.

The wells are the obvious thread. Avraham's servant meets Rivkah at a well. Yitzchak settles near Be'er Lachai Ro'i, the well where Hagar once met an angel. And in Toldot, Yitzchak spends most of a chapter digging: first his father's old wells, which the Pelishtim had stopped up, then new ones, which the herdsmen of Gerar fought over, and at last one that nobody quarrelled about.

The witnesses are quieter. Eliezer asks for a sign at the well and then watches in silence, because a sign isn't proof. Avraham gives Avimelech seven ewes "so that it will be a witness for me that I dug this well." And the Torah's rule that a matter stands only "by the mouth of two witnesses" sits behind all of it, together with the Chafetz Chaim's long teaching on what a listener may accept.

The heirs are everywhere. Avraham gives "all that he had" to Yitzchak and gifts to the other sons. Yitzchak and Yishmael stand together at their father's grave. A generation later, the question of which son inherits will split Yitzchak's own house, and the haftarah of Chayei Sarah tells of an old king, David, whose sons are already arguing over his throne.

How the chapters are built

There are six chapters. The first three come from Chayei Sarah: Avraham's burial, his gifts and his inheritance, and his servant at the well. The fourth comes from Toldot and its wells. The fifth reads Tehillim 144 in November 2026, when the news was full of talk about who would take the first step toward an agreement. The sixth reads the two

haftaros of these weeks, from Melachim and from Malachi, as one more witness to the same three themes.

Each of the first five chapters opens with a short essay. After the essay comes a longer section that goes into the sources behind it: Rashi and the Ramban on the verses, the Gemara and the Midrash, the Rambam where he turns the story into law, and the places where the haftarah and Tehillim speak to the same theme. Then comes the whole passage in Hebrew and English, so that every quotation can be read in its setting, and then questions for the table.

The questions are meant to be argued over. Some are about the plain meaning of a verse, and some ask how a teaching lands in our own families and communities. None of them has a single right answer, and several of the best ones came up when I tried to answer them myself and couldn't.

A word on the texts

Every Hebrew quotation was cut directly from the Sefaria texts I opened on 10 November 2026, and each one was checked against that text before it went into the booklet. The vowels and cantillation are left out so the page is easier to read. Divine names are written ה' and אלקים in Hebrew, and G-d, L-rd and Hashem in English, including inside quoted verses.

The English renderings of the commentaries, the Talmud and the Midrash are my own working translations. Where I leaned on a published translation, the bibliography says so. The passages printed in full use the 1985 Jewish Publication Society translation, which is on Sefaria, with divine names written in the same way. Please check any quotation against a printed edition before you rely on it in teaching.

Two of the modern sources in Chapter 4 are by political thinkers, Philip Pettit and Daniel J. Elazar. Their books are theirs, and the bibliography gives them in full. Where I summarise their ideas, the summary is mine, and any mistake in it is mine as well.

Care in speech

A booklet about witnesses has to be careful about what it says of people. The Torah's figures are discussed here as the Sages and commentators discuss them, and no living person is judged in these pages. Chapter 5 mentions one public statement made on 9 November 2026. I checked it against three news reports, and the chapter says which ones.

CHAPTER 4

Wells by Their Old Names

Bereishis 26, protective speech, non-domination and covenant

Parashat Toldot, read on Shabbat 14 November 2026, tells at length of Yitzchak's wells. The Ramban saw in them the three Batei Mikdash. This chapter reads the same verses with a different question: what happens when one people's decision undoes another family's work, and how does the chapter move from quarrel to covenant?

The essay draws on two modern thinkers, Philip Pettit and Daniel J. Elazar, whose ideas are given in summary, with Elazar quoted from his introduction. The section after it reads Bereishis Rabbah on "after the death of Avraham," Rashi and the Midrash on Yitzchak's staying in the Land and on his harvest, the Ramban on the three wells, Avraham's earlier covenant at Be'er Sheva, the Mishnah on digging near a neighbour, the Sages on wells of Torah, and Tehillim 120.

THE ESSAY

Wells by Their Old Names

Bereishis 26, protective speech and freedom from domination · Parashat Toldot

Parashat Toldot, which we read on Shabbat, 14 November 2026, gives more verses to wells than to almost anything else in Yitzchak's life. The Ramban noticed this and asked why:

> יספר הכתוב ויאריך בענין הבארות, ואין בפשוטי הספור תועלת ולא כבוד גדול ליצחק, והוא ואביו עשו אותם בשוה. אבל יש בדבר ענין נסתר בתוכו, כי בא להודיע דבר עתיד
>
> *Scripture tells at length the matter of the wells, and in the plain sense of the story there is no benefit, nor great honour to Yitzchak, for he and his father did them alike. But there is a hidden matter within it, for it comes to make known a future thing.*
>
> Ramban on Bereishis 26:20

His answer is that the wells hint at the Batei Mikdash, and that the third well, Rechovos, points to the future House:

> והשלישי קרא רחובות, הוא הבית העתיד שיבנה במהרה בימינו, והוא יעשה בלא ריב ומצה
>
> *And the third he called Rechovos: this is the future House, which will be built speedily in our days, and it will be made without quarrel and strife.*
>
> Ramban on Bereishis 26:20

I want to look at the wells that came before the quarrels, and at the covenant that came after them.

Stopped wells

> וכל־הבארת אשר חפרו עבדי אביו בימי אברהם אביו סתמום פלשתים וימלאום עפר
>
> *And all the wells that his father's servants had dug in the days of Avraham his father, the Pelishtim stopped up and filled with earth.*
>
> Bereishis 26:15

Why fill a well with earth? In the Negev a well is life. Rashi gives the Pelishtim's reason:

> סתמום פלשתים. מפני שאמרו תקלה הם לנו מפני הגיסות הבאות עלינו
>
> *"The Pelishtim stopped them up": because they said, "They are a hazard to us, because of the raiding troops that come against us."*
>
> Rashi on Bereishis 26:15

They didn't want water that a passing army could use. The fear wasn't unreasonable. But the result was that one family's work was undone by another people's decision, and nobody asked the family.

Dug again, under the old names

> וישב יצחק ויחפר את־בארת המים אשר חפרו בימי אברהם אביו ויסתמום פלשתים אחרי מות אברהם ויקרא להן שמות כשמת אשר־קרא להן אביו
>
> *Yitzchak dug again the wells of water that had been dug in the days of Avraham his father, which the Pelishtim had stopped up after Avraham's death; and he called them by names like the names his father had called them.*
>
> Bereishis 26:18

Yitzchak didn't rename anything. He went back to his father's wells and gave each one the name Avraham had given it. It's a modest act, and it says: this was ours before, and we are restoring it, not conquering it. Rashi adds that he did this before he left Gerar:

וישב ויחפר. הבארות אשר חפרו בימי אברהם אביו ופלשתים סתמום, מקדם שנסע יצחק מגרר, חזר וחפרן

"He dug again": the wells that had been dug in the days of Avraham his father, which the Pelishtim had stopped up, before Yitzchak set out from Gerar he went back and dug them again.

Rashi on Bereishis 26:18

Speech that protects

Earlier in the chapter Yitzchak had protected himself in a different way:

וישאלו אנשי המקום לאשתו ויאמר אחתי הוא כי ירא לאמר אשתי פן־יהרגני אנשי המקום על־רבקה כי־טובת מראה הוא

The men of the place asked about his wife, and he said, "She is my sister," for he was afraid to say "my wife": "lest the men of the place kill me over Rivkah, for she is beautiful to look at."

Bereishis 26:7

"She is my sister" was a temporary frame. It didn't change who Rivkah was. It held off danger in a place where Yitzchak had no protection under any known rule. When Avimelech found out the truth, he turned that protection into a rule:

ויצו אבימלך את־כל־העם לאמר הנגע באיש הזה ובאשתו מות יומת

Avimelech commanded all the people, saying: "Whoever touches this man or his wife shall surely be put to death."

Bereishis 26:11

That change, from protection by careful speech to protection by public law, is the centre of what I want to say.

Non-domination

The political philosopher Philip Pettit, in *Republicanism: A Theory of Freedom and Government* (1997), argues that freedom is more than not being interfered with. It is not being dominated: not living at the mercy of someone who could interfere with you whenever he likes, even if he happens to be kind for now. On his account a slave with a gentle master is still unfree, and a citizen under known, fair law that answers to his interests is free, even though the law restrains him. (That is my summary of Pettit's idea, not his words.)

Read Bereishis 26 with that in mind. Before Avimelech's decree, Yitzchak lived at the mercy of "the men of the place." Nothing had been done to him, but anything could be. So he spoke in a way that shielded him. After the decree there was a known rule. The danger hadn't disappeared, but it was no longer arbitrary.

The wells show the other side of the same idea. Stopping a neighbour's wells is a decision made about him, without him. Even if the Pelishtim never laid a hand on Yitzchak, they held power over his water. When he dug the wells again and kept their names, he wasn't taking anything from anyone. He was refusing to let a one-sided decision be the last word about what was his.

From quarrel to covenant

Then came the new wells and the quarrels over them:

> וירִיבו רעי גרר עם־רעי יצחק לאמר לנו המים ויקרא שם־הבאר עשק כי התעשקו עמו

The herdsmen of Gerar quarrelled with Yitzchak's herdsmen, saying, "The water is ours." So he called the well Esek, because they had contended with him.

Bereishis 26:20

> ויעתק משם ויחפר באר אחרת ולא רבו עליה ויקרא שמה רחבות ויאמר כי־עתה הרחיב ה' לנו ופרינו בארץ

He moved on from there and dug another well, and they did not quarrel over it. He called it Rechovos, and said: "For now Hashem has made room for us, and we shall be fruitful in the land."

Bereishis 26:22

The chapter doesn't end with a wall. It ends with a covenant. Avimelech came to Yitzchak with his adviser and the commander of his army. Yitzchak asked why they had come, since they had hated him and sent him away. They answered:

> ויאמרו ראו ראינו כי־היה ה' עמך ונאמר תהי נא אלה בינותינו בינינו ובינך ונכרתה ברית עמך אם־תעשה עמנו רעה כאשר לא נגענוך וכאשר עשינו עמך רק־טוב ונשלחך בשלום אתה עתה ברוך ה'

They said: "We have surely seen that Hashem was with you. So we said: let there be an oath between us, between us and you, and let us make a covenant with you, that you will do us no harm, just as we did not touch you, and just as we did only good with you and sent you away in peace. You are now the blessed of Hashem."

Bereishis 26:28–29

The political scientist Daniel J. Elazar spent decades on covenant in Jewish political thought. In the introduction to *Covenant and Polity in Biblical Israel* (1995) he writes that the covenant idea "emphasizes the mutually accepted limitations on the power of all parties to it." He adds that covenant "recognizes the distinction between those who are bound by the covenant and those who are not," and at the same time "makes provisions for appropriate linkages between those so bound and others, granted of a different order,

but designed to keep the peace in the world in the face of the realities of conflicting human interests, needs and demands."

That is what happens at Be'er Sheva. Avimelech and Yitzchak aren't one people, and they don't become one. They agree on limits: you will do us no harm, as we did not touch you. Then:

> וישכימו בבקר וישבעו איש לאחיו וישלחם יצחק וילכו מאתו בשלום
>
> *They rose early in the morning and swore to one another; and Yitzchak sent them off, and they went from him in peace.*
>
> Bereishis 26:31

The same day, Yitzchak's servants came and told him they had found water (Bereishis 26:32).

The law of neighbours

The halachah of neighbours carries the same spirit. Partners in land are not held together against their will; if the land can be divided, either one can ask for his share:

> כללו של דבר כל שיש ביניהם שתפות בקרקע ובקש אחד מן השתפין לחלק ולטל חלקו לבדו. אם יש באותה קרקע דין חלוקה כופה את שאר השתפין וחולקין עמו
>
> *The general rule: wherever there is a partnership in land between them, and one of the partners asks to divide and take his portion alone, if that land is large enough to be divided, he compels the other partners and they divide with him.*
>
> Rambam, Hilchos Shecheinim 1:1

And when land is sold, the owner of the adjoining field has the first right to buy it:

> ודבר זה משום שנאמר (דברים ו יח) "ועשית הישר והטוב" אמרו חכמים הואיל והמכר אחד הוא טוב וישר הוא שיקנה מקום זה בן המצר יותר מן הרחוק
>
> *And this is because it says, "You shall do what is right and good." The Sages said: since the sale is the same, it is good and right that the neighbour buy this place rather than the one from afar.*
>
> Rambam, Hilchos Shecheinim 12:5

Neither rule takes away a person's right to his own. They ask that, where nothing is lost, the neighbour be considered, because "you shall do what is right and good" (Devarim 6:18).

The Rambam also has a law about wells that the Pelishtim might have found useful:

כגון שהיתה לו באר או בור בחצרו בין שיש בו מים בין שאין בו מים חיב לעשות חליא גבוהה עשרה טפחים. או לעשות לה כסוי כדי שלא יפל בה אדם וימות. וכן כל מכשל שיש בו סכנת נפשות מצות עשה להסירו

For example, if he had a well or a pit in his courtyard, whether it has water in it or not, he is obligated to make a rim ten handbreadths high, or to make a cover for it, so that no one fall into it and die. And likewise any obstacle that holds danger to life: it is a positive commandment to remove it.

Rambam, Hilchos Rotze'ach uShmiras Nefesh 11:4

A well is a danger as well as a blessing. The Torah's answer isn't to fill it with earth. It is to build a rim or set a cover: guard against the danger and keep the water.

Digging again

The Alter Rebbe, in Tanya, has a teaching that sounds very like the wells. Torah learned without proper intention is real; Kuntres Acharon even insists that a person learning Torah must understand what he learns:

כי לימוד התורה הוא מבין ויודע מה שלומד, דבלאו הכי לא מיקרי לימוד כלל

For in the study of Torah he understands and knows what he is learning, since otherwise it is not called study at all.

Tanya, Kuntres Acharon, Essay 3

But such learning doesn't rise as high as it could, and it stays that way until the person goes back to it:

אך כל זמן שלא חזר ולמד דבר זה לשמה, אין לימודו עולה אפילו בי' ספירות המאירות בעולם היצירה והעשיה

But as long as he has not gone back and learned this matter for its own sake, his learning does not rise even into the ten sefiros that shine in the worlds of Yetzirah and Asiyah.

Tanya, Likkutei Amarim, ch. 40

What was learned in a hurry, or out of habit, can be dug again and given its true name.

That, to me, is the lesson of Yitzchak's wells. Some of what our fathers dug has been stopped up, by others or by our own neglect. We don't need new names. We need to dig again, call things by the names they were given, cover what is dangerous, and make covenants that limit everyone's power, our own included.

Philip Pettit, *Republicanism: A Theory of Freedom and Government* (Oxford: Clarendon Press, 1997). Pettit's idea is summarised in my own words; no quotation or page is cited.

Daniel J. Elazar, *Covenant and Polity in Biblical Israel: Biblical Foundations and Jewish Expressions*, The Covenant Tradition in Politics, vol. 1 (New Brunswick, NJ: Transaction Publishers, 1995), Introduction, section I; quoted from the online text of the Introduction at https://dje.jcpa.org/books/ct-vol1-int.htm (opened 10 November 2026; no page numbers there).

READING THE THINKERS

Pettit and Elazar in brief

Philip Pettit, freedom as non-domination

In *Republicanism: A Theory of Freedom and Government* (Oxford: Clarendon Press, 1997), Pettit argues for a republican idea of freedom. A person is free not merely when no one interferes with him, but when no one holds the power to interfere with him arbitrarily, at will. A kind master who never interferes still dominates; a fair law, publicly known and answerable to the interests of those it governs, constrains without dominating. This is a summary in my own words; no quotation or page is cited.

Daniel J. Elazar, covenant as limited power

In the introduction to *Covenant and Polity in Biblical Israel* (1995), Elazar describes covenant as a theo-political idea. He writes that it "emphasizes the mutually accepted limitations on the power of all parties to it," and that cultures shaped by it are committed "to live free while being bound together in appropriate relationships, to preserve their own integrities while sharing in a common whole." Quoted from the online text of the introduction (https://dje.jcpa.org/books/ct-vol1-int.htm, opened 10 November 2026), which has no page numbers.

DEEPER IN THE SOURCES

After the death of Avraham: wells stopped, dug again and named

"And it was after the death of Avraham"

The essay asked why the Pelishtim stopped Avraham's wells. The Midrash asks a different question: why the Torah says they did it "after the death of Avraham." Rabbi Simon answers with a pattern he finds across Tanach:

> אמר רבי סימון בכל מקום שנאמר ויהי אחרי, חזר העולם לאחוריו, ויהי אחרי מות אברהם, מיד (בראשית כו, טו יח): וכל הבארת וגו' ויסתמום פלשתים אחרי מות אברהם
>
> *Rabbi Simon said: wherever it says "And it was after," the world went backwards. "And it was after the death of Avraham": at once, "And all the wells… the Pelishtim stopped them up after the death of Avraham."*
>
> Bereishis Rabbah 62:3

The Midrash goes on with more examples. After the death of Moshe, the well, the clouds of glory and the manna stopped. After the death of Yehoshua, the nations rose against Israel. After the death of Shaul, the Pelishtim attacked. A great man holds things in place, and when he goes, they slip. Then Rabbi Yudan adds the comfort:

> אמר רבי יודן אילולי שהעמיד הקדוש ברוך הוא אחרים תחתיהם כבר חזר העולם לאחוריו, דכתיב: ויהי אחרי מות אברהם, וכתיב (בראשית כו, יח): וישב יצחק ויחפר
>
> *Rabbi Yudan said: had the Holy One, blessed be He, not raised up others in their place, the world would already have gone backwards. As it is written, "And it was after the death of Avraham," and it is written, "And Yitzchak dug again."*
>
> Bereishis Rabbah 62:3

The world doesn't go backwards, because Hashem raises up someone to stand in the place of the one who is gone. After Moshe there is Yehoshua; after Yehoshua there is Yehudah; after Avraham there is Yitzchak, digging. That is the deepest reason, I think, that Yitzchak kept his father's names. He wasn't founding something new. He was the one raised up so that what his father built would not slip away.

Each generation has its own version of this. Teachers die, communities lose the people who held them together, and the wells they dug are quietly stopped. The Midrash doesn't say that the next generation will be as great. It says that someone will be raised up, and that his first task is to dig again.

A man who could not leave

The chapter opens with a famine, and with Yitzchak on the road to Egypt, as his father had once gone. Hashem stops him:

> אל תרד מצרימה. שהיה דעתו לרדת מצרימה, כמו שירד אביו בימי הרעב; אמר לו: אל תרד מצרימה, שאתה עולה תמימה, ואין חוצה לארץ כדאי לך
>
> *"Do not go down to Egypt": for he had in mind to go down to Egypt, as his father had gone down in the days of the famine. He said to him: Do not go down to Egypt, for you are an unblemished offering, and outside the Land is not fitting for you.*
>
> Rashi on Bereishis 26:2

Yitzchak had been bound on the altar at the Akeidah. The Midrash that Rashi is drawing on makes the comparison exact:

> אמר רבי הושעיה את עולה תמימה, מה עולה אם יצאת חוץ לקלעים היא נפסלת, אף את אם יצאת חוץ לארץ נפסלת
>
> *Rabbi Hoshaya said: You are an unblemished burnt-offering. Just as a burnt-offering that goes out beyond the curtains becomes unfit, so you, if you go outside the Land, become unfit.*
>
> Bereishis Rabbah 64:3

The same passage of the Midrash reads the next words, "dwell in the land," as a charge:

> שכן בארץ, עשה שכונה בארץ ישראל, הוי נוטע, הוי זורע, הוי נציב
>
> *"Dwell in the land": make a dwelling in the Land of Israel. Plant, sow, stand firm.*
>
> Bereishis Rabbah 64:3

That is the background to everything else in the chapter. Avraham could go down to Egypt and come back. Yitzchak had to stay in the Land, famine or not, Pelishtim or not. He couldn't solve his problems by leaving. He had to solve them where he was, with the wells, the neighbours and the king he had. Plant, sow, stand firm: the rest of the chapter shows him doing all three.

The danger of a quiet stretch

The essay read "She is my sister" as protection by careful speech. Rashi points out how it ended:

> כי ארכו. אמר, מעתה אין לי לדאג, מאחר שלא אנסוה עד עכשו, ולא נזהר להיות נשמר
>
> *"When [his days there] had grown long": he said, "From now on I need not worry, since they have not taken her until now." And he was no longer careful to stay on guard.*
>
> Rashi on Bereishis 26:8

Time passed, nothing happened, and Yitzchak stopped being careful. Then Avimelech looked out of his window and saw the truth. A protection that depends on one man's vigilance is fragile, because no one stays on guard forever. That is one more reason the change to a public rule mattered so much. Avimelech's decree didn't depend on Yitzchak remembering to be careful.

A hard land and a hard year

Then comes the famous harvest:

> בארץ ההיא בשנה ההיא. שניהם למה? לומר, שהארץ קשה והשנה קשה
>
> *"In that land, in that year": why both? To tell you that the land was hard and the year was hard.*
>
> Rashi on Bereishis 26:12

The essay's further reading noted Rashi's comment that the "hundredfold" was measured for tithes:

> מאה שערים. שאמדוה כמה ראויה לעשות, ועשתה על אחת שאמדוה מאה. ורבותינו אמרו אמד זה למעשרות היה
>
> *"A hundredfold": they estimated how much it ought to yield, and it yielded a hundred times what they estimated. And our Rabbis said: this estimate was for the sake of tithes.*
>
> Rashi on Bereishis 26:12

Read the two comments together. The land was hard, the year was hard, and Yitzchak sowed anyway. When the harvest came, he measured it, because he wanted to know what he owed. The blessing came to a man who planted in a bad year and counted for tithes in a good one.

The success brought its own trouble. The Torah says that Yitzchak "grew very great," and Rashi brings the Midrash's picture of what people said:

> כי גדל מאוד. שהיו אומרים זבל פרדותיו של יצחק ולא כספו וזהבו של אבימלך
>
> *"For he grew very great": people used to say, "Better the dung of Yitzchak's mules than the silver and gold of Avimelech."*
>
> Rashi on Bereishis 26:13 (citing Bereishis Rabbah)

That kind of talk doesn't make neighbours friendly. Immediately afterwards the Torah tells us that the Pelishtim envied him and stopped the wells, and that Avimelech said, "Go away from us, for you have become much mightier than we" (Bereishis 26:16). The wells weren't stopped by people who were threatened by an army. They were stopped by people who were uncomfortable with a neighbour's success.

Esek, Sitnah, Rechovos

Rashi gives the meaning of the first well's name:

> עשק. ערעור: כי התעשקו עמו. נתעשקו עמו עליה במריבה וערעור
>
> *"Esek": contention. "Because they contended with him": they wrangled with him over it, in quarrel and contention.*
>
> Rashi on Bereishis 26:20

The Ramban, as the essay showed, reads the three wells as the three Batei Mikdash. Here is the middle of his comment, on the first two:

וקרא הראשון עשק, ירמז לבית הראשון אשר התעשקו עמנו ועשו אותנו כמה מחלוקות וכמה מלחמות עד שהחריבוהו. והשני קרא שמה שטנה, שם קשה מן הראשון, והוא הבית השני שקרא אותו כשמו שכתוב בו (עזרא ד ו) "ובמלכות אחשורוש בתחלת מלכותו כתבו שטנה על ישבי יהודה וירושלם", וכל ימיו היו לנו לשטנה עד שהחריבוהו וגלו ממנו גלות רעה

He called the first Esek: it hints at the First House, over which they contended with us and brought on us many quarrels and many wars, until they destroyed it. The second he called Sitnah, a harsher name than the first: that is the Second House, which he called by the name written of it, "In the reign of Achashverosh, at the beginning of his reign, they wrote an accusation (sitnah) against the inhabitants of Yehudah and Yerushalayim" (Ezra 4:6). All its days it was an adversary to us, until they destroyed it and we went from it into a bitter exile.

Ramban on Bereishis 26:20

The Ramban's reading turns a story about water into a story about history. The First House was fought over; the Second House was dogged by accusation from its first days, as the verse in Ezra records; the Third will stand without quarrel. There is a small lesson in the order, too. The second name is "harsher than the first." Contention over a well is ordinary. Formal accusation, written and sent to a king, is worse. And the third well came only after Yitzchak "moved on from there" (Bereishis 26:22). Sometimes room is found by moving a little, without giving up the land.

The first covenant at Be'er Sheva

The covenant at the end of the chapter has a precedent. Avraham had made a covenant with Avimelech, king of Gerar in his day, at the same place, and that one began with a complaint about a well:

והוכח אברהם את־אבימלך על־אדות באר המים אשר גזלו עבדי אבימלך

Avraham rebuked Avimelech about the well of water that Avimelech's servants had seized.

Bereishis 21:25

Avimelech's answer is a model of how not to take responsibility:

ויאמר אבימלך לא ידעתי מי עשה את־הדבר הזה וגם־אתה לא־הגדת לי וגם אנכי לא שמעתי בלתי היום

Avimelech said: "I do not know who did this thing. You did not tell me, and I did not hear of it until today."

Bereishis 21:26

Nobody told me, he says, and I heard nothing. Avraham doesn't argue the point. He makes a covenant, and then he does something unusual:

ויאמר כי את־שבע כבשת תקח מידי בעבור תהיה־לי לעדה כי חפרתי את־הבאר הזאת על־כן קרא למקום ההוא באר שבע כי שם נשבעו שניהם

He said: "Take these seven ewes from my hand, so that it will be a witness (edah) for me that I dug this well." Therefore that place was called Be'er Sheva, for there the two of them swore.

Bereishis 21:30–31

The seven ewes are a witness. Avraham turns a gift into testimony, so that nobody can later say the well was someone else's. This is where the three themes of the booklet meet in one verse: a well, a witness and an inheritance. The name of the place, Be'er Sheva, records both the oath and the seven.

When Yitzchak's covenant is made at the same spot, a generation later, the Torah ends the story with water:

ויהי ביום ההוא ויבאו עבדי יצחק ויגדו לו על־אדות הבאר אשר חפרו ויאמרו לו מצאנו מים ויקרא אתה שבעה על־כן שם־העיר באר שבע עד היום הזה

On that same day Yitzchak's servants came and told him about the well they had dug, and said to him, "We have found water." He called it Shiv'ah; therefore the name of the city is Be'er Sheva to this day.

Bereishis 26:32–33

The name is given again. Yitzchak didn't invent Be'er Sheva. He found water on the day of the covenant and called the well by a name that recalled his father's oath. Once more, the old name was kept.

The law of the neighbour's well

The essay brought the Rambam's laws of neighbours. The Mishnah that begins the second chapter of Bava Basra applies them to digging:

לא יחפור אדם בור סמוך לבורו של חבירו, ולא שיח, ולא מערה, ולא אמת המים, ולא נברכת כובסין – אלא אם כן הרחיק מכותל חבירו שלשה טפחים, וסד בסיד

A person may not dig a pit near his fellow's pit, nor a trench, nor a cave, nor a water channel, nor a launderers' pool, unless he keeps it three handbreadths from his fellow's wall and plasters it with lime.

Mishnah Bava Basra 2:1, as printed in Bava Basra 17a

A person may dig on his own land, but not in a way that weakens his neighbour's wall. The distance and the lime plaster are there so that one man's well doesn't undermine another man's house. It is the Pelishtim's question turned around. They stopped another family's wells because the wells might help an enemy. The Mishnah asks the person digging to make sure that his own well doesn't harm anyone.

Wells of Torah

The Sages often speak of Torah as water, and of a scholar as a well. Rabban Yochanan ben Zakkai described two of his students this way:

> הוא היה מונה שבחן. רבי אליעזר בן הורקנוס, בור סוד שאינו מאבד טפה. רבי יהושע בן חנניה, אשרי יולדתו. רבי יוסי הכהן, חסיד. רבי שמעון בן נתנאל, ירא חטא. ורבי אלעזר בן ערך, מעין המתגבר

He used to list their praises. Rabbi Eliezer ben Hurkenos: a plastered cistern that does not lose a drop. Rabbi Yehoshua ben Chananyah: happy is she who bore him. Rabbi Yosi the Kohen: a man of piety. Rabbi Shimon ben Nesanel: one who fears sin. And Rabbi Elazar ben Arach: a spring that keeps growing stronger.

Pirkei Avos 2:8 (Rabban Yochanan ben Zakkai on his students)

A plastered cistern holds everything it receives. A spring brings up new water of its own. Rabban Yochanan needed both, and so does every community. Yitzchak's work in Gerar was the work of the first kind: he kept what his father had dug, and called it by its name. His new wells were the work of the second.

The Tanya, as the essay showed, speaks of going back to learning that was done without intention, and learning it again for its own sake. Its third essay in Kuntres Acharon opens with the question:

> להבין מה שכתוב בשער היחודים פרק ב', דעל־ידי תורה שלא בכוונה נבראים מלאכים בעולם היצירה

To understand what is written in Sha'ar HaYichudim, chapter 2, that through Torah [learned] without intention, angels are created in the world of Yetzirah.

Tanya, Kuntres Acharon, Essay 3 (opening)

The Alter Rebbe's answer, which the essay quoted, is that even learning without intention includes understanding, and so creates something real. It can be raised later, when the person goes back to it. That is digging again in the most personal sense.

Yeshayahu gives the joyful version of the same image:

> ושאבתם־מים בששון ממעיני הישועה

You shall draw water with joy from the wells of salvation.

Yeshayahu 12:3

Tehillim: "I am peace"

Yitzchak's quarrels over wells call to mind a short psalm about living among people who quarrel. It opens with a prayer about speech:

ה' הצילה נפשי משפת־שקר מלשון רמיה

Hashem, save my soul from a lying lip, from a deceitful tongue.
Tehillim 120:2

And it ends with a sentence that could stand as Yitzchak's own:

אני־שלום וכי אדבר המה למלחמה

I am peace; but when I speak, they are for war.
Tehillim 120:7

The psalmist doesn't claim that his neighbours are wicked. He says that he speaks of peace and they hear war. Yitzchak lived that verse. Each time the herdsmen quarrelled, he moved on and dug again, until the day the king and his general came to him asking for a covenant. Peace wasn't won by winning the argument. It came when the other side saw, as they said, that "Hashem was with you."

THE TEXT IN FULL

Reading the passage

Hebrew as in the Sefaria source text, with vowels removed; English from Tanakh: The Holy Scriptures (Jewish Publication Society, 1985), via Sefaria, with divine names written G-d and L-rd. The JPS translation uses the English forms of names (Abraham, Isaac).

Bereishis 26:1–33

1 ויהי רעב בארץ מלבד הרעב הראשון אשר היה בימי אברהם וילך יצחק אל־אבימלך מלך־פלשתים גררה

There was a famine in the land—aside from the previous famine that had occurred in the days of Abraham—and Isaac went to Abimelech, king of the Philistines, in Gerar.

2 וירא אליו ה' ויאמר אל־תרד מצרימה שכן בארץ אשר אמר אליך

The L-RD had appeared to him and said, "Do not go down to Egypt; stay in the land which I point out to you.

3 גור בארץ הזאת ואהיה עמך ואברכך כי־לך ולזרעך אתן את־כל־הארצת האל והקמתי את־השבעה אשר נשבעתי לאברהם אביך

Reside in this land, and I will be with you and bless you; I will assign all these lands to you and to your heirs, fulfilling the oath that I swore to your father Abraham.

4 והרביתי את־זרעך ככוכבי השמים ונתתי לזרעך את כל־הארצת האל והתברכו בזרעך כל גויי הארץ

I will make your heirs as numerous as the stars of heaven, and assign to your heirs all these lands, so that all the nations of the earth shall bless themselves by your heirs—

5 עקב אשר־שמע אברהם בקלי וישמר משמרתי מצותי חקותי ותורתי

inasmuch as Abraham obeyed Me and kept My charge: My commandments, My laws, and My teachings."

6 וישב יצחק בגרר

So Isaac stayed in Gerar.

7 וישאלו אנשי המקום לאשתו ויאמר אחתי הוא כי ירא לאמר אשתי פן־יהרגני אנשי המקום על־רבקה כי־טובת מראה הוא

When the men of the place asked him about his wife, he said, "She is my sister," for he was afraid to say "my wife," thinking, "The men of the place might kill me on account of Rebekah, for she is beautiful."

8 ויהי כי ארכו־לו שם הימים וישקף אבימלך מלך פלשתים בעד החלון וירא והנה יצחק מצחק את רבקה אשתו

When some time had passed, Abimelech king of the Philistines, looking out of the window, saw Isaac fondling his wife Rebekah.

9 ויקרא אבימלך ליצחק ויאמר אך הנה אשתך הוא ואיך אמרת אחתי הוא ויאמר אליו יצחק כי אמרתי פן־אמות עליה

Abimelech sent for Isaac and said, "So she is your wife! Why then did you say: 'She is my sister?'" Isaac said to him, "Because I thought I might lose my life on account of her."

10 ויאמר אבימלך מה־זאת עשית לנו כמעט שכב אחד העם את־אשתך והבאת עלינו אשם

Abimelech said, "What have you done to us! One of the people might have lain with your wife, and you would have brought guilt upon us."

11 ויצו אבימלך את־כל־העם לאמר הנגע באיש הזה ובאשתו מות יומת

Abimelech then charged all the people, saying, "Anyone who molests this man or his wife shall be put to death."

12 ויזרע יצחק בארץ ההוא וימצא בשנה ההוא מאה שערים ויברכהו ה'

Isaac sowed in that land and reaped a hundredfold the same year. The L-RD blessed him,

13 ויגדל האיש וילך הלוך וגדל עד כי־גדל מאד

and the man grew richer and richer until he was very wealthy:

14 ויהי־לו מקנה־צאן ומקנה בקר ועבדה רבה ויקנאו אתו פלשתים

he acquired flocks and herds, and a large household, so that the Philistines envied him.

15 וכל־הבארת אשר חפרו עבדי אביו בימי אברהם אביו סתמום פלשתים וימלאום עפר

And the Philistines stopped up all the wells which his father's servants had dug in the days of his father Abraham, filling them with earth.

16 ויאמר אבימלך אל־יצחק לך מעמנו כי־עצמת ממנו מאד

And Abimelech said to Isaac, "Go away from us, for you have become far too big for us."

17 וילך משם יצחק ויחן בנחל־גרר וישב שם

So Isaac departed from there and encamped in the wadi of Gerar, where he settled.

18 וישב יצחק ויחפר את־בארת המים אשר חפרו בימי אברהם אביו ויסתמום פלשתים אחרי מות אברהם ויקרא להן שמות כשמת אשר־קרא להן אביו

Isaac dug anew the wells which had been dug in the days of his father Abraham and which the Philistines had stopped up after Abraham's death; and he gave them the same names that his father had given them.

19 ויחפרו עבדי־יצחק בנחל וימצאו־שם באר מים חיים

But when Isaac's servants, digging in the wadi, found there a well of spring water,

20 ויריבו רעי גרר עם־רעי יצחק לאמר לנו המים ויקרא שם־הבאר עשק כי התעשקו עמו

the herdsmen of Gerar quarreled with Isaac's herdsmen, saying, "The water is ours." He named that well Esek, because they contended with him.

21 ויחפרו באר אחרת ויריבו גם־עליה ויקרא שמה שטנה

And when they dug another well, they disputed over that one also; so he named it Sitnah.

22 ויעתק משם ויחפר באר אחרת ולא רבו עליה ויקרא שמה רחבות ויאמר כי־עתה הרחיב ה' לנו ופרינו בארץ

He moved from there and dug yet another well, and they did not quarrel over it; so he called it Rehoboth, saying, "Now at last the L-RD has granted us ample space to increase in the land."

23 ויעל משם באר שבע

From there he went up to Beer-sheba.

24 וירא אליו ה' בלילה ההוא ויאמר אנכי אלקי אברהם אביך אל־תירא כי־אתך אנכי וברכתיך והרביתי את־זרעך בעבור אברהם עבדי

That night the L-RD appeared to him and said, “I am the G-d of your father Abraham. Fear not, for I am with you, and I will bless you and increase your offspring for the sake of My servant Abraham.”

25 ויבן שם מזבח ויקרא בשם ה' ויט־שם אהלו ויכרו־שם עבדי־יצחק באר

So he built an altar there and invoked the L-RD by name. Isaac pitched his tent there and his servants started digging a well.

26 ואבימלך הלך אליו מגרר ואחזת מרעהו ופיכל שר־צבאו

And Abimelech came to him from Gerar, with Ahuzzath his councilor and Phicol chief of his troops.

27 ויאמר אלהם יצחק מדוע באתם אלי ואתם שנאתם אתי ותשלחוני מאתכם

Isaac said to them, “Why have you come to me, seeing that you have been hostile to me and have driven me away from you?”

28 ויאמרו ראו ראינו כי־היה ה' עמך ונאמר תהי נא אלה בינותינו בינינו ובינך ונכרתה ברית עמך

And they said, “We now see plainly that the L-RD has been with you, and we thought: Let there be a sworn treaty between our two parties, between you and us. Let us make a pact with you

29 אם־תעשה עמנו רעה כאשר לא נגענוך וכאשר עשינו עמך רק־טוב ונשלחך בשלום אתה עתה ברוך ה'

that you will not do us harm, just as we have not molested you but have always dealt kindly with you and sent you away in peace. From now on, be you blessed of the L-RD!”

30 ויעש להם משתה ויאכלו וישתו

Then he made for them a feast, and they ate and drank.

31 וישכימו בבקר וישבעו איש לאחיו וישלחם יצחק וילכו מאתו בשלום

Early in the morning, they exchanged oaths. Isaac then bade them farewell, and they departed from him in peace.

32 ויהי ביום ההוא ויבאו עבדי יצחק ויגדו לו על־אדות הבאר אשר חפרו ויאמרו לו מצאנו מים

That same day Isaac's servants came and told him about the well they had dug, and said to him, "We have found water!"

33 ויקרא אתה שבעה על־כן שם־העיר באר שבע עד היום הזה

He named it Shibah; therefore the name of the city is Beer-sheba to this day.

FOR THE TABLE

Questions

1. Yitzchak kept his father's names for the wells. What have you inherited that you would rather restore than rename?
2. Pettit says a kind master still dominates. Where have you felt the difference between kindness and a known rule?
3. The Rambam's answer to a dangerous well is a cover, not earth. What would that look like in a dispute you know?
4. Yitzchak protected himself with words until there was a public rule. When is careful speech the right protection, and when must we ask for a rule?
5. Elazar says covenant keeps the distinction between those bound by it and those who are not, while still linking them. Where do you see that kind of link working?
6. The Tanya says learning can be lifted by going back to it with the right intention. What would you like to "dig again"?
7. The Midrash says that after a great person dies the world "goes backwards," unless someone is raised up in his place. Who has been raised up in your community, and what did he or she dig again?
8. Yitzchak could not leave the Land, so he had to solve his problems where he was. What changes when leaving is not an option?
9. Avraham turned seven ewes into a witness. What are the "witnesses" that protect what is ours today, and are they as clear as his?

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